



DEPARTMENT OF PUBLIC SAFETY

Colorado Bureau of Investigation

MISSING INDIGENOUS PERSONS ALERT PROGRAM

8 CCR 1507-36

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

AUTHORITY TO ADOPT RULES AND REGULATIONS

The Colorado Department of Public Safety Executive Director is mandated to promulgate rules and regulations regarding the MISSING INDIGENOUS PERSONS ALERT PROGRAM pursuant to 24-33.5-431(2)(d), C.R.S.

DEFINITIONS

The definitions provided in section 24-33.5-2601, C.R.S. shall apply to these rules and regulations. The following definitions shall also apply:

“Indigenous” – means having descended from people who were living in North America prior to the time people from Europe began settling in North America, being an enrolled member of a federally recognized Indian Tribe, or being a lineal descendant of a tribally enrolled parent or guardian.

“Indigenous-led organization” – means an organization or entity whose board or decision-making body membership is entirely indigenous and whose staff is comprised of at least seventy percent indigenous persons.

“Missing or Murdered Indigenous Relative” – means any missing or murdered indigenous person.

“Missing Indigenous Persons Alert Program” – means the missing indigenous person alert program operated by the bureau. The program must be a coordinated effort among the bureau, local law enforcement agencies, federal recognized tribes, any governmental agency that may be involved in the search and recovery of a missing indigenous person, and the state's public and commercial television and radio broadcasters. The bureau may operate the alert system as a part of any other missing person alert program operated by the bureau.

“Missing Indigenous Person Alert Program Broadcast” – means a public broadcast notification containing information regarding the missing indigenous person, circumstances surrounding the disappearance, mode of transportation and/or direction of travel, and any additional information pertaining to the investigation that would lead to the safe return of the missing indigenous person.

“Notification Period” – means the time the alert will be active until the suspect(s) is apprehended or the requesting agency provides information that the alert is no longer necessary and should be canceled.

APPLICABILITY

These rules and regulations shall apply to the Colorado Bureau of Investigation and statewide Law Enforcement.

RULES / REGULATIONS / PROCEDURES

▪ **CBI-MIPA 1**

- A local law enforcement agency, operating under their individual policy and procedures, involving an investigation, and upon confirmation of a report of a missing indigenous person, may notify the Colorado Bureau of Investigation and request that the information be conveyed to the bureau for a Missing Indigenous Person Alert Broadcast. The Colorado Bureau of Investigation will provide a designated number to be utilized for contacting Colorado Bureau of Investigation Personnel assigned to assist local law enforcement agencies with the Indigenous Person Alert Broadcast. The number will be operational 24 hours a day, 7 days a week.

▪ **CBI-MIPA 2**

- The Colorado Bureau of Investigation will verify the accuracy of the information based on personal contact with a representative from the law enforcement agency. The verification of information provided by the law enforcement agency, will include but is not limited to: 1) Confirming the identity of the Law Enforcement Agency and the reporting law enforcement official. 2) Confirmation that the missing person has been entered into the CCIC/NCIC system. 3) Reasonable confirmation that the missing person is believed to be an indigenous person and/or a member of a federally recognized tribe and went missing while in Colorado. 4) Verify that the information being reported meets the definition of "missing indigenous person." The Colorado Bureau of Investigation will then forward the information on to participating radio stations, television stations, and other media outlets in Colorado.

▪ **CBI-MIPA 3**

- Participating radio stations, television stations, and other media outlets in Colorado may broadcast all appropriate information that may assist in the safe recovery of the missing person, and a statement instructing anyone with information regarding the missing person to contact his or her local law enforcement agency. The alert information may contain but is not limited to: 1) The missing person's name and identification information to include last known location and tribe affiliation. 2) Information involving the missing person's mode of transportation. 3) Brief description of events leading to the disappearance of the missing person. 4) Information directly related to the safety and health of the missing person.

▪ **CBI-MIPA 4**

- Once the request has been approved, the requesting law enforcement agency should fill out the "Missing Indigenous Person Alert" preformatted Teletype by typing INFO MIPA. This Teletype will notify law enforcement in Colorado that there is an active Missing Indigenous Person Alert".

▪ **CBI-MIPA 5**

- The Alert may be rebroadcast as often as possible, but it is recommended to rebroadcast every 15 minutes the first 2 hours, then every 30 minutes. The update of information may be at the direction of state or local law enforcement and as additional information becomes available or as investigation circumstances change. The cancellation of the broadcast shall be the responsibility of the Colorado Bureau of Investigation. The bureau will notify the participating radio stations, television stations, and other media outlets in all affected area that the missing person has been found or at the end of the broadcasted notification period, which ever comes first. The requesting law enforcement agency must contact the Colorado Bureau of Investigation Designee to deactivate the activation once the missing person is located or at the end of the determined notification period.
- Once the missing person is located and the Colorado Bureau of Investigation has been notified, the requesting law enforcement agency must cancel the original "Missing Indigenous Person Alert" Teletype that was sent out by their agency.

Editor's Notes

History

New rule eff. 12/30/2022.